

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
d/b/a COLONIAL MOBILE MANOR,

Plaintiff,

vs.

Case No. 2023-CC-4403

JAMES ALLEN KIRKENDALL and
ANY UNKNOWN PARTY(s) IN POSSESSION,

Defendants.

JUDGMENT IN DEFAULT FOR POSSESSION

THIS CAUSE having come on for review on Plaintiff's Motion for Default Final Judgment of Possession and the Court having reviewed the pleadings in this matter and being otherwise fully advised in the premises, it is therefore:

ORDERED and ADJUDGED:

That the tenancy of Defendants, JAMES ALLEN KIRKENDALL and ANY UNKNOWN PARTY(s) IN POSSESSION, who occupy the home located at 900 9th Avenue E., Lot #17, Palmetto, Manatee County, Florida 34221, in Colonial Mobile Manor (the "Property"), is hereby terminated, and the Clerk of Court **shall issue a Writ of Possession ten (10) days from the date hereof** directing the Manatee County Sheriff to deliver possession of the Property to Plaintiff and to remove said Defendants, together with any personal property, from the Property; Defendants shall be forever removed and barred from entry onto the Property forevermore.

Plaintiff shall be entitled upon execution of the writ of possession to the removal of the Defendants by the Manatee County Sheriff from the subject home and from all of Lot 17 in the park, and the Plaintiff shall also upon execution of the writ of possession be entitled to change the locks on the home pursuant to its right to store the home as provided by §723.062(2), Florida Statutes.

FILED FOR RECORD
2023 AUG 25 PM 3:55
CLERK OF CIRCUIT COURT
MANATEE COUNTY FLORIDA

By changing the locks, Plaintiff is electing to store the home on the lot as allowed by the statute. Once the locks have been changed, Plaintiff is not required to provide a copy of the new keys to Defendants.

DONE AND ORDERED in Chambers at Bradenton, Manatee County, Florida, this

24th day of August, 2023.



JACQUELINE B. STEELE, County Judge

cc: William C. Price, III, Esquire, 522 Twelfth Street West, Bradenton, FL 34205
James Allen Kirkendall, 900 - 9th Avenue East, Lot #17, Palmetto, Florida, 34221
Any Unknown Party(s) in Possession, 900 - 9th Avenue East, Lot #17, Palmetto, Florida,
34221